Expo Gas Containers Ltd vs Bharat Petroleum Co.Ltd on 25 November, 2016

Bench: A.S. Oka, A. K. Menon

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
    ORDINARY ORIGINAL CIVIL JURISDICTION

                APPEALS NO. 159 OF 2010
                           In
            ARBITRATION PETITION 228 OF 2006

Lite Containers P Ltd.                          ....Petitioner
            V/S
Indian Oil Corporation Ltd                    ....Respondent
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WITH APPEALS NO. 1154 OF 2010 In ARBITRATION PETITION 227 OF 2006 Jcll International Ltd. ....Petitioner V/S Indian Oil Corporation Ltd ....Respondent WITH APPEALS NO. 246 OF 2011 In ARBITRATION PETITION 265 OF 2006 Lite Containers (p) Ltd. ....Petitioner V/S Hindustan Petroleum Corporation Ltd ....Respondent WITH APPEALS NO. 247 OF 2011 In ARBITRATION PETITION 298 OF 2006 Gdr Cylinders Pvt. Ltd. ....Petitioner V/S Hindustan Petroleum Corporation Ltd. ....Respondent WITH APPEALS NO. 800 OF 2011 In ARBITRATION PETITION 232 OF 2006 Indian Oil Corpn. Ltd. ....Petitioner V/S Verny Containers Pvt. Ltd. ....Respondent WITH APPEALS NO. 478 OF 2013 In ARBITRATION PETITION 229 OF 2006 M/s. Sapphire (india) Pvt. Ltd. ....Petitioner V/S Indian Oil Company Ltd ....Respondent WITH APPEALS NO. 479 OF 2013 In ARBITRATION PETITION 226 OF 2006 Mahaveer Cylinders Ltd ....Petitioner V/S Indian Oil Company Ltd ....Respondent WITH APPEALS NO. 480 OF 2013 In ARBITRATION PETITION 222 OF 2006 Tirupati Cylinders Ltd ....Petitioner V/S Indian Oil Company Ltd ....Respondent WITH APPEALS NO. 366 OF 2012 In ARBITRATION PETITION 224 OF 2006 International Cylinders Pvt. Ltd. ....Petitioner V/S Indian Oil Company Ltd ....Respondent WITH APPEALS NO. 263 OF 2015 In ARBITRATION PETITION 729 OF 2012 Balaji Pressure Vessels Ltd. ....Petitioner V/S Bharat Petroleum Corporation Ltd. ....Respondent WITH APPEALS NO. 265 OF 2015 In ARBITRATION PETITION 730 OF 2012 Karnataka Pressure Vessels Ltd. ....Petitioner V/S Bharat Petroleum Company Ltd. ....Respondent WITH APPEALS NO. 283 OF 2015 In ARBITRATION PETITION 736 OF 2010 Expo Gas Containers Ltd. ....Petitioner V/S Bharat Petroleum Co.ltd. ....Respondent WITH APPEALS NO. 284 OF 2015 In ARBITRATION PETITION 737 OF 2010 M/s Super Industries ....Petitioner V/S Bharat Petroleum Company Ltd. ....Respondent WITH APPEALS NO. 160 OF 2010 In ARBITRATION PETITION 225 OF 2006 Gdr Cylindrs P Ltd ....Petitioner V/S Indian Oil Corporation Ltd ....Respondent WITH APPEALS NO. 801 OF 2011 In ARBITRATION PETITION 231 OF 2006 Indian Oil Corpn. Ltd. ....Petitioner V/S Verny Containers Pvt. Ltd. Unit-ii ....Respondent WITH ARBITRATION APPEAL NO. 1 OF 2015 M/s. Prathima Industries Pvt Ltd. ....Petitioner V/S Indian Oil Corporation Ltd. ....Respondent WITH ARBITRATION APPEAL NO. 2 OF 2015 M/s. Prathima Industries Pvt Ltd. ....Petitioner V/S Indian Oil Corporation Ltd ....Respondent WITH APPEALS NO. 365 OF 2011 In ARBITRATION PETITION 281 OF 2006 M/s. Prathima Industries Pvt. Ltd. ....Petitioner V/S D.g.m. O And F And P. L.p.g.

Hindustan ....Respondent Petroleum Corporation Ltd WITH APPEALS NO. 366 OF 2011 In ARBITRATION PETITION 305 OF 2006 Prathima Industries Private Limited ....Petitioner V/S D.g.m. - O And F And P., L.p.g. Hindustan ....Respondent Petroleum Corporation Limited WITH APPEALS NO. 38 OF 2007 In ARBITRATION PETITION 259 OF 2005 Suburban Industries Ltd. ....Petitioner V/S Hindustan Petroleum Corporation Ltd. ....Respondent WITH APPEALS NO. 780 OF 2007 In ARBITRATION PETITION 297 OF 2006 International Cylinders Pvt. Ltd. ....Petitioner V/S Hindustan Petroleum Corporation Ltd. And Anr. ....Respondent WITH CROSS OBJECTION LODGING LODGING NO. 4 OF 2015 In ARBITRATION APPEAL 1 OF 2015 M/s. Prathima Industries Pvt Ltd. ....Petitioner V/S Indian Oil Corporation Ltd. ....Respondent WITH APPEALS NO. 446 OF 2015 In ARBITRATION PETITION 815 OF 2011 North India Wires Ltd. ....Petitioner V/S Bharat Petroleum Co. Ltd. And Vinod Giri ....Respondent WITH APPEALS NO. 445 OF 2015 In ARBITRATION PETITION 762 OF 2011 J.r. Fabricators Ltd. ....Petitioner V/S Bharat Petroleum Corporation Ltd ....Respondent WITH APPEALS NO. 444 OF 2015 In ARBITRATION PETITION 809 OF 2011 Haldia Precision Engineering Pvt. Ltd. ....Petitioner V/S Bharat Petroleum Co. Ltd. And Vinod Giri ....Respondent WITH APPEALS NO. 295 OF 2016 In ARBITRATION PETITION 335 OF 2012 Alampally Brothers Ltd. ....Petitioner V/S Bharat Petroleum Corporation Ltd. And Anr ....Respondent WITH APPEALS NO. 297 OF 2016 In ARBITRATION PETITION 905 OF 2011 Metalfab Hightech Pvt. Ltd. ....Petitioner V/S Bharat Petroleum Co. Ltd. And Vinod Giri ....Respondent WITH APPEALS NO. 299 OF 2016 In ARBITRATION PETITION 821 OF 2011 Sahuwala Cylinders Pvt. Ltd. ....Petitioner V/S Bharat Petroleum Co. Ltd. And Vinod Giri ....Respondent WITH APPEALS NO. 256 OF 2016 In ARBITRATION PETITION 817 OF 2011 Ncc Ltd. ....Petitioner V/S Bharat Petroleum Corpn. Ltd. And Vinod Giri ....Respondent CORAM : A.S. OKA & A. K. MENON, JJ DATE : 25th November, 2016 P.C. :

Not before the bench of which Shri A. S. Oka, J. is a member.

(ASSOCIATE)